

Cong. Rec. 33872 (1974) (Sen. Hruska), a key sponsor of the measure responded by expressly denying any intention of determining appellant's blameworthiness or imposing punitive sanctions:

"This bill does not contain a word to the effect that Mr. Nixon is guilty of any violation of the law. It does not inflict any punishment on him. So it has no more relation to a bill of attainder . . . than my style of pulchritude is to be compared to that of the Queen of Sheba." *Id.*, at 33959-33960 (Sen. Ervin).

In this respect, the Act stands in marked contrast to that invalidated in *United States v. Lovett*, 328 U. S., at 312, where a House Report expressly characterized individuals as "subversive . . . and . . . unfit . . . to continue in Government employment." H. R. Rep. No. 448, 78th Cong., 1st Sess., 6 (1943). We, of course, do not suggest that such a formal legislative announcement of moral blameworthiness or punishment is necessary to an unlawful bill of attainder. *United States v. Lovett*, *supra*, at 316. But the decided absence from the legislative history of any congressional sentiments expressive of this purpose is probative of nonpunitive intentions and largely undercuts a major concern that prompted the bill of attainder prohibition: the fear that the legislature, in seeking to pander to an inflamed popular constituency, will find it expedient openly to assume the mantle of judge—or, worse still, lynch mob. Cf. *Z. Chafee, supra*, at 161.⁴⁵ No such legislative overreaching is involved here.

⁴⁵ The Court in *United States v. Brown*, 381 U. S., at 444, referred to Alexander Hamilton's concern that legislatures might cater to the "momentary passions" of a "free people, in times of heat and violence" In this case, it is obvious that the supporters of this Act steadfastly avoided inflaming or appealing to any "passions" in the community. Indeed, rather than seek expediently to impose punishment and to circumvent the courts, Congress expressly provided for access to the Judiciary for resolution of any constitutional and legal rights appellant might assert. S. Rep. No. 93-1181, pp. 2-6 (1974).